

HOUSE No. 4370

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, August 11, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1649) of Marjorie C. Decker, Jennifer Balinsky Armini and others relative to furnishing transcripts of notes and fees, reports recommending that the accompanying bill (House, No. 4370) ought to pass.

For the committee,

MICHAEL S. DAY.

HOUSE No. 4370

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act concerning furnishing transcripts of notes and fees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 221 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out section 88 and inserting in place thereof the following
3 section:-

4 Section 88. Upon request of the presiding justice or any party, the transcriber shall
5 furnish a transcript of their notes or audio recording, or any part thereof, taken at a trial or
6 hearing, for which they shall be paid by the party requesting it at the rate of \$4.50 per page for
7 the original and \$1.50 per page for each copy ordered. If requested by a party, the transcriber
8 shall furnish an electronic reproduction at an amount not to exceed \$7.50 for each electronic
9 reproduction requested. All electronic reproductions shall be in an open-source format as
10 specified by the office of transcription services. Copies, if so requested by an indigent person or
11 counsel for an indigent person, shall be paid at \$.15 per page. In the event that a rush transcript is
12 ordered by the presiding justice or any party, the rate shall be \$6.75 per page for the original and
13 \$2.25 per page for each copy; provided that, if requested by a party, the transcriber shall furnish
14 an electronic reproduction at an amount not to exceed \$7.50 for each electronic reproduction;

15 and provided further, that copies, if so requested by an indigent person or counsel for an indigent
16 person, shall be paid at \$.23 per page. If a transcript is ordered by the presiding justice or, in a
17 criminal case, by the district attorney, payment therefor shall be made at the same rate by the
18 administrative office of the trial court upon a voucher approved by the presiding justice and, in a
19 criminal case, the charges for transcripts furnished to a justice and to the district attorney shall be
20 taxed like other expenses. If the presiding justice orders that a statement given to the police be
21 transcribed, all parties shall receive a copy and payment therefor shall be made at the same rate
22 by the administrative office of the trial court upon a voucher approved by the presiding justice.